

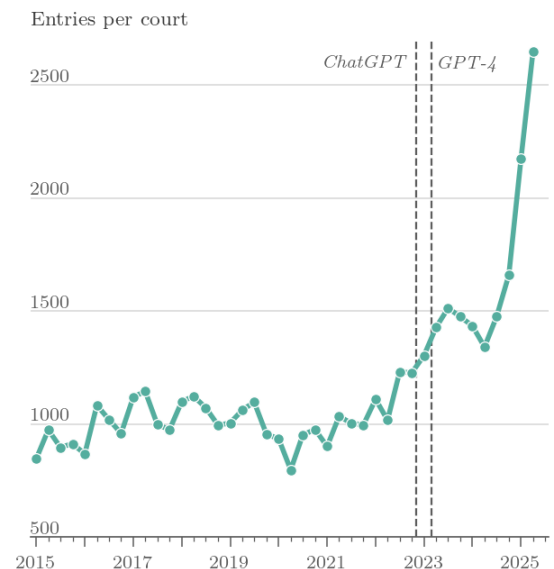
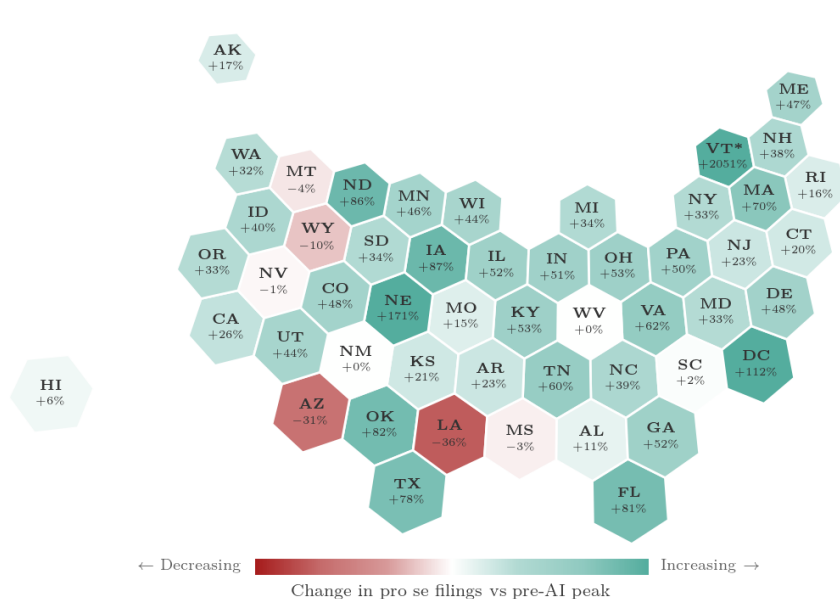
Access to Justice in the Age of AI

Evidence from U.S. federal civil courts, FY2005–FY2026

Generative AI has lowered the cost of filing federal civil cases without increasing court capacity. Drawing on AOUSC and FJC administrative records and public docket feeds, we have analyzed roughly 4.5 million non-prisoner federal civil cases and 40 million matched docket entries. Two findings stand out:

- **Pro se share is rising from a 20-year plateau (~11% → 17%).** The effect is large, happening everywhere, and shows no signs of stopping. Forty-four of fifty states have already exceeded their pre-AI peak by FY2025, with growth concentrated in formulaic case types.
- **Cases are heavier, not just more numerous.** Within-case docket activity is rising sharply: docket entries generated by *pro se* cases in their first 180 days have risen 158% above the pre-AI mean.

Taken together, AI tools are increasing access to the courts, but absent a policy response, the associated congestion may ultimately deny those same litigants substantive access to justice.



Why we're writing

We are economists. Our [paper](#) has reached several million readers and has been covered in the media ([New York Times](#), [Bloomberg](#), [Reuters](#) among others)—yet we want judges, court administrators, and AI policy leaders in the conversation.

- We would value brief conversations with judges, court administrators, and AI policy leaders to better understand what these patterns look like from inside the courts.
- As scientists, we are also seeking court data (under strict privacy and data protections) to ground our analysis and the national conversation that is currently moving largely on impressions.
- We are happy to share the paper, replication code, a confidential briefing for your team, and any jurisdiction-specific analysis you may find helpful.